"Enlightened litigative policy in the country must accept as final the pronouncements of this court unless the subject be of such fundamental importance to national life or the reasoning is so plainly erroneous in the light of later thought that it is wiser to be ultimately right rather than to be consistently wrong. Stare decisis is not a ritual of convenience but a rule with limited exceptions."

DOCTRINE OF OCCUPIED FIELD

1. Meaning of the Doctrine

The doctrine of occupied field says that when the Parliament enacts a law on a particular subject and thereby occupies the field, a State Legislature will not have authority to make any law on that field. In other words, according to this doctrine, when a legislative field is already occupied by a central legislation, there would be no scope for a state legislation in that field. This doctrine is also known as the doctrine of covered field.

If the matter is within the exclusive competence of the Parliament i.e., Union List (List I), then the State Legislature is prohibited to make any law with regard to the same[56]. Similarly, if any matter is within the exclusive competence of the State Legislature i.e., State List (List II), then it becomes a prohibited field for the Parliament[57]. On the other hand, if the matter is enumerated in the Concurrent List (List III), then both the Parliament as well as the State Legislature will have the competence to make the law.

There may be a situation where a State Legislature is making a law on a matter enumerated in the Concurrent List, it may notice that the legislative field is already occupied by a law of the Parliament.

Therefore, the doctrine of occupied field is relevant in the case of laws made with reference to entries in the Concurrent List[58]. In other words, the doctrine of occupied field can be applied only to the entries of the Concurrent List[59].

It must be noted here that the doctrine of occupied field originates from Article 254 which deals with the inconsistency (repugnancy) between laws made by the Parliament and the State Legislature.

2. Doctrine of Repugnancy

Article 254 declares that in case of any inconsistency between a parliamentary law and a state law in respect of matters enumerated in the Concurrent List, the parliamentary law shall prevail and the state law shall be void to the extent of repugnancy.

According to the Supreme Court, the repugnancy between the two laws may be ascertained on the following three principles:[60]

(i) Direct Conflict whether there is direct conflict between the two provisions;

(ii) Intended Occupation whether Parliament intended to lay down an exhaustive code in respect of the subject-matter replacing the Act of the State legislature; and

(iii) Occupied Field whether the law made by Parliament and the law made by the State legislature occupied the same field.

In order to determine the question of repugnancy between the two laws, the Supreme Court laid down the following tests[61] (propositions):